

IN THE SUPREME COURT OF BANGLADESH

High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Khairul Alam

Civil Revision No. 3898 of 2024.

Mst. Sufia Bewa and others
..... Petitioners.

-Versus-

Md. Bazlar Rahman and others.
..... Opposite parties.

Ms. Sonia Akter, Advocate
..... For the petitioners.

Mr. Gourango Chandra Kar, along with
Mr. Md. Shahabuddin and
Mr. Md. Siddiqur Rahman, Advocates
..... For the opposite parties.

Heard on: 03.07.2025 and
Judgment on: 10.07.2025.

Leave was granted and a rule was issued calling upon the opposite parties to show cause as to why the judgment and order dated 21.08.2024 passed by the learned Additional District Judge, 1st Court, Naogaon in Civil Revision No. 03 of 2024 allowing the said Civil Revision after setting aside the order dated 18.01.2024 passed by the learned Assistant Judge, Mohadebpur, Naogaon in Other Class Suit No. 06 of 2024 staying all further proceeding of Partition Execution Case No. 03 of 2024 till disposal of the Other Class Suit No. 6 of 2024 should not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

Relevant facts for the disposal of the rule are that the present petitioners as plaintiffs filed Other Class Suit No. 06 of 2024 in the Court of learned Assistant Judge, Mohadebpur, Naogaon impleading the present opposite parties as defendants seeking, inter alia, that the compromised preliminary judgment and decree dated 28.02.2021 and the final decree dated 28.05.2021 passed in Partition Suit No. $\frac{445 \text{ of } 2021}{93 \text{ of } 2020}$ are null and void and not binding upon the plaintiffs pleading, inter alia, that the petitioner was a necessary party to that suit, but without impleading him the plaintiffs of that suit obtained the compromised decree fraudulently. In the said suit, the petitioners filed an application under Order XXI Rule 29 along with section 151 of the Code of Civil Procedure, 1908 for staying all further proceedings of Execution Case No. 03 of 2023 arising out of the above-mentioned compromised judgment and decree. After hearing the said application, the learned Assistant Judge, Mohadebpur, Naogaon by the order dated 18.01.2024 stayed all further proceedings of Partition Execution Case No. 03 of 2023. Against the said order, the defendants preferred Civil Revision Case No. 03 of 2024 in the Court of District Judge, Naogaon which was heard by the learned Additional District Judge, 1st Court, Naogaon who by the judgment and order dated 21.08.2024 allowed the civil revision and thereby set aside the order of stay passed by the trial Court.

Being aggrieved thereby, the petitioner preferred this civil revision and obtained the rule and an order of stay of all further proceedings of Partition Execution Case No. 03 of 2024.

Ms. Sonia Akter, the learned Advocate appearing for the petitioners submits that the revisional Court below failed to consider that the petitioners filed a suit challenging the judgment and decree from which the impugned execution case has arisen and the same is still pending; therefore, if the execution case is not stayed till disposal of the suit, a multifarious complicity would arise.

Per contra, Mr. Gourango Chandra Kar, the learned Advocate appearing for the opposite parties submits that no stay can be granted under Order XXI Rule 29 of the Code of Civil Procedure on the prayer of a party who was not a part to the judgment, therefore, the revisional court below rightly passed the impugned judgment and order refusing the prayer of the petitioners for staying the proceeding of Partition Execution Case No. 03 of 2024.

Admittedly, the impugned order was passed rejecting an application filed under Order XXI Rule 29 of the Code of Civil Procedure which runs as follows:-

“Where a suit is pending in any Court against the holder of a decree of such Court, on the part of the person against whom the decree was passed, the Court may, on such terms as to security or otherwise, as it thinks fit, stay execution of the decree until the pending suit has been decided.”

From a plain reading of the said provision, it appears that Rule 29 of Order XXI of the Code of Civil Procedure enjoins that where a suit is pending in any Court on the part of the judgment debtor against the

decree-holder, the court may stay execution of the decree until the pending suit is decided. On careful examination of the provision, it appears that a third party has no locus standi to file any application under the rule, therefore, in my opinion, the application filed by the petitioner under Order XXI Rule 29 of the Code of Civil Procedure as a third party was misconceived. The trial Court on misconception of the law and facts allowed the application, but the revisional court rightly passed the impugned judgment and order after setting aside the order of the trial Court.

Therefore, I do not find any scope to interfere with the impugned judgment and order and do not find any merit in the rule.

In the result, this rule is discharged, however, there is no order as to costs.

The order of stay passed at the time of issuance of the rule is hereby recalled and vacated.

Communicate a copy of this judgment at once.

Kashem, B.O